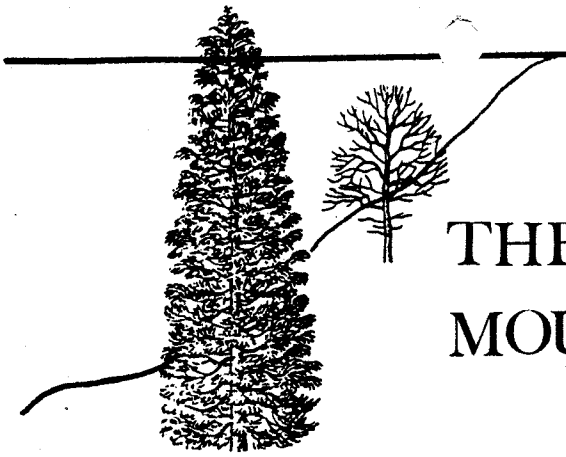


THE MOUNTAINSIDE NEWS

Volume 2, Number 4 July/August 1987

CMA ANNUAL MEETING

Remember, the Annual Meeting has been set for the SATURDAY after Labor Day, SEPTEMBER 12, at 1:00 PM.* The pool and spa will be open. Major items of business, in addition to elections, will be: 1) an update on the implementation of the CMA/CDC Agreement; 2) a request by the Board for approval of revised By-Laws; and 3) an in-depth financial review -- Past, Present, and Future.

Minutes from last year's Annual Meeting are enclosed. You will soon be receiving other mailings in preparation for the meeting.

*To members who may need, or who would like to offer housing for the meeting: Charles Barrett will be coordinating arrangements. Please call his secretary, Phyllis, AFTER AUGUST 1, Mondays through Thursdays from 10:00 AM to 2:00 PM, 301/587-0422.

Next Board Meeting, August 8, 9:00 AM -- Charles Barrett's office, Silver Spring MD.

ROAD RESURFACING

We have recently completed resurfacing sections of Mountainside Road. Our thanks to Sam Ashelman, who arranged and paid for the work at the entry on Herbert Quick Drive.

NEW MEMBERS

A warm welcome to the following who have recently bought homes at Coolfont:

--Don Burns and Alice Baum of Washington D.C., from the McGunigles (E-5, E-6).

--Donna Shelly and Lewis Brogan of Lanham MD, from the Janneys (N-6). CHIPMONK

--Robert and Virginia Lapham of Arlington VA, from the Wiggins (L-4).

--Mr. and Mrs. Jason Newman of Bethesda MD, from the Schwarzwalders (K-9).

--Mr. and Mrs. Harry Birnkrandt of Potomac MD, from the Spiegels (N-1).

And to Mr. and Mrs. Selig Goodman who bought lot G-6.

FROM THE TREASURER

The CMA financial condition has been an important subject at the June and July Board meetings.

(cont. next page)

Published by the COOLFONT MOUNTAINSIDE ASSOCIATION, Rt. 1 Coolfont Rd. Box 21, Berkeley Springs, WV 25411
Editor: Carol M. Green, 3703 Curtis Ct., Chevy Chase MD 20815. 301/654-7737

FROM THE TREASURER (cont.)

The CMA is not in dire straits, but our financial position is still less than stable. Unforeseen expenses continue to hamper management of the CMA's finances.

Why unforeseen?

First: Areas of recurring (cyclic) expense must be anticipated and forecast. Since our history of maintaining CMA has been brief -- we, of need, are being educated each year. An example has been the regrading of the road shoulders this year, an unforeseen $1,200 expense which we project will need be repeated in 5 years.

Second: Our expense forecasts are inadequate. Given last year's major increase in our insurance, the new $1,000 increase this year was, to say the least, unexpected.

Third: Certain expenses were not projected in the budget...

--That some homeowners would reject the CMA/CDC Agreement and seek redress through the courts was an unforeseen action which may cost the association $3,000 or more in legal fees this year.

--That all the water pumps would break down this year, at least once, to the tune of over $4,500 in repair and replacement costs.

The above expenditures total almost $10,000, or 20% of our total income.

Needless to say, the Board has deferred other expenses to meet these areas. But the Board cannot continue to defer necessary expenses year after year. The Board is committed to reducing and ultimately eliminating our debt -- for the interest we pay, and loss of income on reserve funds is a significant and unnecessary burden.

Needed funds must come from the membership -- a subject which will be on the agenda for the Annual Meeting.

JUNE 13 "PLANT-IN" AT POOL

Elmer Broxson reports...

"Shortly after 1:00, the following members assembled at the pool for the First Annual (?) CMA Pool Plant-in: Don Fox; Bill, Monica and B.J. Boyden; Dwain Place; Allen Gallant; Dianne and "Casey" Kaseman; and Elmer. After removing three dead trees which were endangering the fence and pool equipment, the group split into four work parties. Dianne and Monica planted flowers beside the waterfall; Casey, Dwain and Elmer planted 12 evergreens to screen the berm and the equipment; Don laid out a new path across the berm to the equipment; and Allen, Bill and B.J. dug a 150' trench for the electric cable to the new storage shed.

The work was finished about 5 PM and everyone was invited by the Boydens to see their new house and recover over drinks."

Elmer estimates that the Association got about $600 worth of work done for a cost of less than $100 for the trees, topsoil and mulch.

JUDGE RULES ON CMA CASE

To review...a group of 7 homeowners has been trying to overturn the judgement which ended the CMA/CDC suit last October -- part of the overall settlement between CMA and CDC. The group objected to the settlement and filed a motion to reinstate the suit. CMA opposed their motion (as did CDC). On June 24, Judge Steptoe heard arguments from all sides at the Morgan County Courthouse, Berkeley Springs. No decision was reached. Rather, he directed all parties to submit briefs on the questions of whether the dissidents: 1) waited an unreasonably long time to file their motion: and 2) had standing to seek to set aside the judgement. Briefs were submitted and on July 22 the judge ruled against the dissidents on both questions and denied their motion to set aside the judgement.

CORRECTIONS/ADDITIONS-- POOL RULES

--B-3) Unaccompanied guests or tenants of members (except those attending conferences) must bring red badge or 20-swim punch card (see C-1), 2))

--Lifeguard's number at pool 304/258-5245.